La Disclosure Finanziaria negli Stati Uniti e le Nuove Normative sulla Cybersecurity

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Introduzione

- Negli Stati Uniti, le società quotate in borsa sono tenute a presentare periodicamente documenti alla Securities and Exchange Commission (SEC) per garantire trasparenza e protezione degli investitori.
- I principali moduli di disclosure includono:
  - Form 10-K (rapporto annuale)
  - Form 10-Q (rapporto trimestrale)
  - Form 8-K (comunicazione eventi rilevanti)

Form 10-K

- **Definizione**: Il Form 10-K è il rapporto annuale che le società quotate devono presentare alla SEC, fornendo una panoramica completa delle loro performance finanziarie.
- **Contenuto**:
  - Storia dell'azienda e struttura organizzativa.
  - Bilanci certificati.
  - Analisi dei risultati economico-finanziari.
  - Descrizione della strategia aziendale.
  - Discussione dei fattori di rischio.
  - Informazioni sulla governance.
- **Scadenze di presentazione**:
  - **Large Accelerated Filers** (capitalizzazione di mercato $\geq$ 700 milioni di dollari): entro 60 giorni dalla chiusura dell'anno fiscale.
  - **Accelerated Filers** (capitalizzazione di mercato tra 75 e 700 milioni di dollari): entro 75 giorni.
  - **Non-Accelerated Filers** (capitalizzazione di mercato $<$ 75 milioni di dollari): entro 90 giorni.

Struttura del Form 10-K (1/2)

1. **Part I (Items 1–4)**
   - **Item 1**: Business
   - **Item 1A**: Risk Factors
   - **Item 1B**: Unresolved Staff Comments
   - **Item 1C**: Cybersecurity
   - **Item 2**: Properties
   - **Item 3**: Legal Proceedings
   - **Item 4**: Mine Safety Disclosures
2. **Part II (Items 5–9C)**
   - **Item 5**: Market for Registrant's Common Equity, ...
   - **Item 6**: Consolidated Financial Data
   - **Item 7**: Management's Discussion and Analysis (MD&A)
   - **Item 7A**: Quantitative and Qualitative Disclosures About Market Risk
   - **Item 8**: Financial Statements and Supplementary Data
   - **Item 9**: Changes in and Disagreements With ...
   - **Item 9A**: Controls and Procedures
   - **Item 9B**: Other Information
   - **Item 9C**: Disclosure Regarding Foreign Jurisdictions that Prevent ...

Struttura del Form 10-K (2/2)

3. **Part III (Items 10-14)**
   - **Item 10**: Directors, Executive Officers and Corporate Governance
   - **Item 11**: Executive Compensation
   - **Item 12**: Security Ownership of Certain Beneficial Owners ...
   - **Item 13**: Certain Relationships and Related Transactions, and Director Independence
   - **Item 14**: Principal Accounting Fees and Services
4. **Part IV (Items 15–16)**
   - **Item 15**: Exhibits e Financial Statement Schedules
   - **Item 16**: Form 10–K Summary

Fonte: Form 10-K General instructions

Esempio Form 10-K

UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549

FORM 10-K

(Mark One)

☒ **ANNUAL REPORT PURSUANT TO SECTION 13 OR 15(d) OF THE SECURITIES EXCHANGE ACT OF 1934**
For the fiscal year ended September 28, 2024
or
☐ **TRANSITION REPORT PURSUANT TO SECTION 13 OR 15(d) OF THE SECURITIES EXCHANGE ACT OF 1934**
For the transition period from _____ to _____.
Commission File Number: **001-36743**

Apple Inc.
(Exact name of Registrant as specified in its charter)

California		**94-2404110**
(State or other jurisdiction of incorporation or organization)		(I.R.S. Employer Identification No.)
One Apple Park Way **Cupertino, California**		**95014**
(Address of principal executive offices)		(Zip Code)

(408) 996-1010
(Registrant's telephone number, including area code)

Securities registered pursuant to Section 12(b) of the Act:

Title of each class	Trading symbol(s)	Name of each exchange on which registered
Common Stock, $0.00001 par value per share	**AAPL**	**The Nasdaq Stock Market LLC**
0.000% Notes due 2025	**—**	**The Nasdaq Stock Market LLC**
0.875% Notes due 2025	**—**	**The Nasdaq Stock Market LLC**
1.625% Notes due 2026	**—**	**The Nasdaq Stock Market LLC**
2.000% Notes due 2027	**—**	**The Nasdaq Stock Market LLC**
1.375% Notes due 2029	**—**	**The Nasdaq Stock Market LLC**
3.050% Notes due 2029	**—**	**The Nasdaq Stock Market LLC**
0.500% Notes due 2031	**—**	**The Nasdaq Stock Market LLC**
3.600% Notes due 2042	**—**	**The Nasdaq Stock Market LLC**

Securities registered pursuant to Section 12(g) of the Act: None

The Company is also subject to the examination of its tax returns and other tax matters by the U.S. Internal Revenue Service and other tax authorities and governmental bodies. The Company regularly assesses the likelihood of an adverse outcome resulting from these examinations to determine the adequacy of its provision for taxes. There can be no assurance as to the outcome of these examinations. If the Company's effective tax rates were to increase, or if the ultimate determination of the Company's taxes owed is for an amount in excess of amounts previously accrued, the Company's business, results of operations and financial condition could be materially adversely affected.

General Risks

The price of the Company's stock is subject to volatility.

The Company's stock has experienced substantial price volatility in the past and may continue to do so in the future. Additionally, the Company, the technology industry and the stock market as a whole have, from time to time, experienced extreme stock price and volume fluctuations that have affected stock prices in ways that may have been unrelated to these companies' operating performance. Price volatility may cause the average price at which the Company repurchases its stock in a given period to exceed the stock's price at a given point in time. The Company believes the price of its stock should reflect expectations of future growth and profitability. The Company also believes the price of its stock should reflect expectations that its cash dividend will continue at current levels or grow, and that its current share repurchase program will be fully consummated. Future dividends are subject to declaration by the Company's Board of Directors (the "Board"), and the Company's share repurchase program does not obligate it to acquire any specific number of shares. If the Company fails to meet expectations related to future growth, profitability, dividends, share repurchases or other market expectations, the price of the Company's stock may decline significantly, which could have a material adverse impact on investor confidence and employee retention.

Item 1B. Unresolved Staff Comments

None.

Item 1C. Cybersecurity

The Company's management, led by its Head of Corporate Information Security, has overall responsibility for identifying, assessing and managing any material risks from cybersecurity threats. The Company's Head of Corporate Information Security leads a dedicated Information Security team of highly skilled individuals with experience across industries that, among other things, develops and distributes information security policies, standards and procedures; engages in employee cybersecurity training; implements security controls; assesses security risk and compliance posture; monitors and responds to security events; and executes security testing and assessments. The Company's Head of Corporate Information Security has extensive knowledge and skills gained from over 25 years of experience in the cybersecurity industry, including serving in leadership positions at other large technology companies and leading the Company's Information Security team since 2016.

The Company's Information Security team coordinates with teams across the Company to prevent, respond to and manage security incidents, and engages third parties, as appropriate, to assess, test or otherwise assist with aspects of its security processes and incident response. A dedicated Supplier Trust team manages information security risks the Company is exposed to through its supplier relationships. The Company has processes to log, track, address, and escalate for further assessment and report, as appropriate, cybersecurity incidents across the Company and its suppliers to senior management and the Audit and Finance Committee (the "Audit Committee") of the Board. The Company's enterprise risk management program is designed to identify, assess, and monitor the Company's business risks, including financial, operational, compliance and reputational risks, and reflects management's assessment of cybersecurity risks.

The Audit Committee assists the Board in the oversight and monitoring of cybersecurity matters. The Audit Committee regularly reviews and discusses the Company's cybersecurity risks with management, including the Company's Head of Corporate Information Security, its General Counsel and the Heads of Compliance and Business Conduct, Business Assurance, and Internal Audit, and receives updates, as necessary, regarding cybersecurity incidents. The Chair of the Audit Committee regularly reports the substance of such reviews and discussions to the Board, as necessary, and recommends to the Board such actions as the Audit Committee deems appropriate.

For a discussion of the Company's cybersecurity-related risks, see Item 1A of this Form 10-K under the heading "Risk Factors."

Fonte: Form 10-K AAPL (2024)

Form 10-Q

- **Definizione**: Il Form 10-Q è il rapporto trimestrale che fornisce aggiornamenti sulle performance finanziarie delle società quotate.
- **Contenuto**:
  - Bilanci non certificati.
  - Analisi della gestione sui risultati operativi.
  - Aggiornamenti sui fattori di rischio.
- **Scadenze di presentazione**:
  - **Large Accelerated Filers** e **Accelerated Filers**: entro 40 giorni dalla fine del trimestre fiscale.
  - **Non-Accelerated Filers**: entro 45 giorni.

Form 8-K

- **Definizione**: Il Form 8-K è un rapporto corrente utilizzato per comunicare eventi aziendali rilevanti che si verificano tra le presentazioni periodiche.
- **Esempi di eventi da segnalare**:
  - Cambiamenti nella leadership aziendale.
  - Acquisizioni o dismissioni significative.
  - Fallimenti.
  - Incidenti di sicurezza informatica materiali.
- **Tempistiche di presentazione**: Le aziende devono presentare il Form 8-K entro 4 giorni lavorativi dall'evento (con possibile estensione fino a 60 giorni).

Struttura del Form 8-K (1/2)

- **Section 1 – Registrant's Business and Operations**
  - items 1.01 - 1.05 (es. Material Definitive Agreements, Fallimenti, Cybersecurity Incidents)
- **Section 2 – Financial Information**
  - items 2.01 - 2.06 (es. acquisizioni e dismissioni, risultati operativi, obbligazioni finanziarie)
- **Section 3 – Securities and Trading Markets**
  - items 3.01 - 3.03 (delisting, vendita di titoli non registrati, modifiche materiali ai diritti dei titolari)
- **Section 4 – Matters Related to Accountants and Financial Statements**
  - items 4.01 - 4.02 (cambi del revisore contabile, non affidabilità di bilanci precedenti)

Struttura del Form 8-K (2/2)

- **Section 5 – Corporate Governance and Management**
  - items 5.01 - 5.08 (es. cambi di controllo, dimissioni o nomine di dirigenti, modifiche a statuti sociali)
- **Section 6 – Asset-Backed Securities**
  - items 6.01 - 6.06 (es. Cambio del Servicer o del Trustee)
- **Section 7 – Regulation FD Disclosure**
  - item 7.01 (comunicazioni di rilievo ai sensi del Reg. FD)
- **Section 8 – Other Events**
  - item 8.01 (altri eventi rilevanti non coperti altrove)
- **Section 9 – Financial Statements and Exhibits**
  - item 9.01 (bilanci, prospetti, allegati e documenti di supporto)

Fonte: Form 8-K General instructions

Esempio Form 8-K

UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
WASHINGTON, D.C. 20549

FORM 8-K

CURRENT REPORT
PURSUANT TO SECTION 13 OR 15(D)
OF THE SECURITIES EXCHANGE ACT OF 1934

Date of Report (Date of earliest event reported) January 17, 2024

Microsoft Corporation

Washington	001-37845	91-1144442
(State or Other Jurisdiction of Incorporation)	(Commission File Number)	(IRS Employer Identification No.)

One Microsoft Way, Redmond, Washington	98052-6399

(425) 882-8080
www.microsoft.com/investor

Check the appropriate box below if the Form 8-K filing is intended to simultaneously satisfy the filing obligation of the registrant under any of the following provisions (see General Instruction A.2. below):

☐ Written communications pursuant to Rule 425 under the Securities Act (17 CFR 230.425)

☐ Soliciting material pursuant to Rule 14a-12 under the Exchange Act (17 CFR 240.14a-12)

☐ Pre-commencement communications pursuant to Rule 14d-2(b) under the Exchange Act (17 CFR 240.14d-2(b))

☐ Pre-commencement communications pursuant to Rule 13e-4(c) under the Exchange Act (17 CFR 240.13e-4(c))

Securities registered pursuant to Section 12(b) of the Act:

Title of each class	Trading Symbol	Name of exchange on which registered
Common stock, $0.00000625 par value per share	MSFT	NASDAQ
3.125% Notes due 2028	MSFT	NASDAQ
2.625% Notes due 2033	MSFT	NASDAQ

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933 (§230.405 of this chapter) or Rule 12b-2 of the Securities Exchange Act of 1934 (§240.12b-2 of this chapter). Emerging growth company ☐

If an emerging growth company, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 13(a) of the Exchange Act. ☐

Item 1.05. Material Cybersecurity Incidents

On January 12, 2024, Microsoft (the "Company" or "we") detected that beginning in late November 2023, a nation-state associated threat actor had gained access to and exfiltrated information from a very small percentage of employee email accounts including members of our senior leadership team and employees in our cybersecurity, legal, and other functions, on the basis of preliminary analysis. We were able to remove the threat actor's access to the email accounts on or about January 13, 2024. We are examining the information accessed to determine the impact of the incident. We also continue to investigate the extent of the incident. We have notified and are working with law enforcement. We are also notifying relevant regulatory authorities with respect to unauthorized access to personal information. As of the date of this filing, the incident has not had a material impact on the Company's operations. The Company has not yet determined whether the incident is reasonably likely to materially impact the Company's financial condition or results of operations.

This Form 8-K contains forward-looking statements, which are any predictions, projections or other statements about future events based on current expectations and assumptions that are subject to risks and uncertainties, which are described in our filings with the Securities and Exchange Commission. Forward-looking statements speak only as of the date they are made. Readers are cautioned not to put undue reliance on forward-looking statements, and the Company undertakes no duty to update any forward-looking statement to conform the statement to actual results or changes in the Company's expectations.

Item 7.01. Regulation FD Disclosure

On January 19, 2024, the Company posted a blog regarding the incident. A copy of the blog is furnished as Exhibit 99.1 to this report.

In accordance with General Instruction B.2 of Form 8-K, the information in this Item 7.01 and Exhibit 99.1, shall not be deemed to be "filed" for purposes of Section 18 of the Securities Exchange Act of 1934, as amended (the "Exchange Act"), or otherwise subject to the liability of that section, and shall not be incorporated by reference into any registration statement or other document filed under the Securities Act of 1933, as amended, or the Exchange Act, except as shall be expressly set forth by specific reference in such filing.

Item 9.01. Financial Statements and Exhibits

(d) Exhibits:

99.1	Microsoft Blog Post dated January 19, 2024 titled "Microsoft Actions Following Attack by Nation State Actor Midnight Blizzard"
104	Cover Page Interactive Data File (embedded within the Inline XBRL document)

Fonte: Form 8-K MSFT (17/01/2024)

Disclosure sulla Cybersecurity nel Form 10-K

- **Nuove Regole SEC (luglio 2023)**: Richiedono alle aziende quotate di fornire annualmente informazioni sulla gestione del rischio informatico, strategia e governance nel Form 10-K, specificamente nell'Item 1C (Cybersecurity).
- **Informazioni da riportare (Item 106, Regulation S-K)**:
  - **Gestione del Rischio e Strategia**: Processi per identificare, valutare e gestire le minacce informatiche, inclusa l'integrazione della cybersecurity nella strategia aziendale.
  - **Governance della Cybersecurity**: Ruolo del consiglio di amministrazione e dei comitati nella supervisione dei rischi informatici.
- Un numero considerevole di aziende integra le informazioni sulla cybersecurity anche nell'Item 1A (Risk Factors), evidenziando i rischi specifici associati alle minacce informatiche.

Fonte: Cybersecurity Disclosure Overview: A Survey of Form 10-K Cybersecurity Disclosures by S&P 100 Companies (2025)

Tendenze nelle Disclosure delle Aziende S&P 100

Le dichiarazioni nell'Item 1C variano significativamente tra le aziende, riflettendo le specifiche circostanze di ciascuna. Infatti:

- Il 66% delle aziende suddivide l'Item 1C in due sezioni principali: (1) Gestione del Rischio e Strategia, e (2) Governance della Cybersecurity.
- Il 33% include sottosezioni all'interno di una o entrambe le sezioni principali.
- Il 23% non utilizza alcuna intestazione specifica.
- L'11% adotta intestazioni diverse dalla struttura standard, includendo più di due sezioni o utilizzando titoli alternativi.

Fonte: Cybersecurity Disclosure Overview: A Survey of Form 10-K Cybersecurity Disclosures by S&P 100 Companies (2025)

Disclosure sulla Cybersecurity nel Form 8-K

- **Obblighi di disclosure**: Dal 18 dicembre 2023, le aziende sono obbligate a segnalare nel Form 8-K gli incidenti di sicurezza informatica "materiali", descrivendo la natura, portata, tempistiche e impatti finanziari dell'evento.
- **Tempistiche**: La segnalazione deve avvenire entro 4 giorni lavorativi dalla determinazione della materialità dell'incidente, con possibile posticipo fino a 60 giorni per motivi legati alla sicurezza nazionale.
- **Impatto della materialità**: Solo il 14% degli incidenti segnalati nel primo anno è stato considerato "materiale". Il 28% dei casi ha riportato materialità "non determinata".
- **Items alternativi (8.01, 7.01)**: In presenza di dubbi sulla materialità, le aziende hanno preferito ricorrere a disclosure volontarie sotto Item 8.01 o 7.01, in linea con i consigli della SEC.

Fonte: Results from the First Year of Cybersecurity Incident Filings on Form 8-K (2025)

Tendenze di Reporting e Tipologie di Incidenti

- **Volumi**: Nel 2024 sono stati segnalati 55 incidenti da 54 aziende.
- **Tempistiche**: Tempo medio di segnalazione = 12 giorni dalla scoperta; il 50% ha rispettato la soglia dei 4 giorni.
- **Aggiornamenti**: Circa 1/3 delle aziende ha presentato più di un Form 8-K per lo stesso incidente; in media, il primo aggiornamento è avvenuto dopo 32 giorni.

Fonte: Results from the First Year of Cybersecurity Incident Filings on Form 8-K (2025)

I nostri risultati

- **Aziende analizzate**: Sono stati presi in esame i file 8-K di 9.737 aziende statunitensi, pubblicati tra luglio 2023 e oggi.
- **Volumi**: Sono stati rilevati 91 form 8-K riconducibili a 66 aziende diverse, relativi 69 attacchi informatici.
- **Tempistiche**: Il tempo medio di segnalazione riscontrato è di circa 12 giorni. Nel 56% dei casi è stata rispettata la soglia di 4 giorni.
- **Aggiornamenti**: 18 aziende hano presentato più di un form 8-K, con un tempo medio di aggiornamento di 36 giorni. 2 aziende hanno prima dichiarato tramite item 8.01 e poi 1.05, ufficializzando la materialità dell'evento
- **Altre info**: 1 azienda ha ricevuto più di un attacco

Bibliografia

- SEC (2024), *Form 10-K General Instructions*. U.S. Securities and Exchange Commission.
- SEC (2024), *Form 8-K General Instructions*. U.S. Securities and Exchange Commission.
- Apple Inc. (2024), *Form 10-K AAPL (2024)*.
- Microsoft Corporation (2024), *Form 8-K MSFT (17/01/2024)*.
- Cybersecurity Disclosure Overview (2025), *A Survey of Form 10-K Cybersecurity Disclosures by S&P 100 Companies*. Harvard Law School Forum on Corporate Governance.
- Kayne McGladrey (2025), *Results from the First Year of Cybersecurity Incident Filings on Form 8-K*.